

25NNCV07072 25NNCV07072

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NNCV07072 Hearing Date: July 31, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Compel Request for Production of
Documents; Request for Sanctions

Hearing Date: 7/31/26

CASE NO./NAME: 25NNCV07072 / Harvey Olen

Quinn, by and through his successor in interest, Beverly Rodriguez vs. Valley
Post-Acute and Rehab, LLC, et al.

Moving Party: Plaintiff Harvey Olen Quinn, by
and through his Successor in Interest, Beverly Rodriguez

Responding Party: Unopposed

Notice: Sufficient

Ruling: DENY as moot.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this

matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is an elder abuse case. Harvey Olen Quinn by and through his successor in interest, Beverly Rodriguez (Plaintiff) moves the Court for an order to compel Defendant Valley Post-Acute and Rehab, LLC (Valley Post-Acute) to serve responses to the Requests for Production of Documents, Set Three ("RPDs"). As of July 29, 2026, no opposition has been filed.

LEGAL

STANDARD

A party must respond to requests for production within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production are directed does not provide timely responses, the requesting party may move for an order compelling responses to the discovery. (Code Civ. Proc., § 2031.300, subd. (b).)

The party also waives the right to make any objections, including one based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).) There is no time limit for a motion to compel responses to interrogatories other than the cut-off on hearing discovery motions 15 days before trial. (Code Civ. Proc., §§ 2024.020, subd. (a), 2030.290.)

"The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery process includes: "(d) failing to respond or to submit to an authorized method of discovery." (Code Civ. Proc. § 2023.010, subd. (d).) Reasonable expenses under Code of Civil Procedure section 2023.030, subdivision (a) include

the time spent

in researching and preparing the motion, as well as court time and travel time

spent in

connection with the motion. (Ghanooni v. Super Shuttle (1993) 20

Cal.App.4th 256, 262.)

DISCUSSION

Pursuant

to July 10, 2026, Minute Order, the Court has already granted a motion filed by

Plaintiff compelling Valley

Post-Acute's responses to RPD Set Three. This motion is a

duplicative request to compel responses.

Accordingly, the motion is DENIED as moot

and the request for sanctions is also DENIED.

CONCLUSION

AND ORDER

Plaintiff's Motion to Compel Responses to

RPD, Set Three is DENIED.

MOVING PARTY is to give notice.